

ORIGINAL

(S E R V E D)
(AUGUST 10, 1992)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

August 10, 1992

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

REQUEST FOR EMERGENCY CONFERENCE

Sea-Land requests an emergency conference to determine the appropriate disposition of copies of Sea-Land's allegedly privileged documents sent here under seal by Mr. McGonegle which documents are subject to GovGuam's motion for *in camera* review.

Sea-Land points out that the parties agreed that Mr. McGonegle would not disclose these documents to anyone pending a decision on the question of privilege; that this agreement has been breached; and if this Judge is inclined to review the documents, Sea-Land requests that it be given the opportunity to submit them *in camera*. Special Counsel

for Sea-Land was not furnished copies of the documents submitted by Mr. McGonegle and wants to be sure they are in fact identical to those listed in Sea-Land's Index of Privileged Documents. Special Counsel also seeks a conference to explore whether any further action with regard to Complainants' prosecution of this proceeding is appropriate.

The documents have not been examined but have been kept under seal in the care of the secretaries of the Office of Administrative Law Judges and will remain there pending disposition of the motion.

In the circumstances there is no need for a conference on these matters at this time.


Frederick M. Dolan, Jr.
Administrative Law Judge